

IPS (Appointment by Promotion) Regulations, 1955

The Indian Police Service

(Appointment By Promotion) Regulations, 1955

As Amended On 31-12-1997 & On 25-07-2000 & On 31.01.2005 & On 13.10.2005

In pursuance of sub-rule (1) of rule 8 of the Indian Police Service (Recruitment) Rules, 1954, the Central Government, in consultation with the State Governments and the Union Public Service Commission, hereby makes the following regulations namely:

1. SHORT TITLE:-

These regulations may be called the Indian Police Service (Appointment by Promotion) Regulations 1955.

2. DEFINITIONS:-

(I) In these regulations, unless the context otherwise requires :

- a. **"Cadre Officer"** means a member of the Service;
- b. **"Cadre Post"** means any of the posts specified as such in the regulations made under sub-rule (1) of rule 4 of the Cadre Rules;
- c. **"Cadre Rules"** means the Indian Police Service (Cadre) Rules, 1954;
- d. **"Committee"** means the Committee set up in accordance with regulation 3;
- e. **"Commission"** means the Union Public Service Commission;
- f. **"Recruitment Rules"** means the Indian Police Service (Recruitment) Rules, 1954;
- g. **"Schedule"** means a Schedule appended to these regulations;
- h. **"Service"** means the Indian Police Service;
- i. **"State"** means a State specified in the First schedule to the Constitution and includes a Union Territory;
- j. **"State Police Service"** means :
 - i. For the purpose of filling up the vacancies in the Indian Police Service cadre of the Arunachal Pradesh-Goa-Mizoram-Union Territories under rule 9 of the Recruitment Rules, any of the following services namely:-
 - a. The Delhi and Andaman & Nicobar Islands Police Service;
 - b. The Goa Police Service;
 - c. The Pondicherry Police Service;
 - d. The Mizoram Police Service;
 - e. The Arunachal Pradesh Police Service
 - i. In all other cases, the principal Police Service of a State, a member of which normally holds charge of a sub-division of a district for purposes of police administration and includes any other duty constituted police service functioning in a State which is declared by the State Government to be equivalent thereto:

i. In all other cases, the principal Police Service of a State, a member of which normally holds charge of a sub-division of a district for purposes of police administration and includes any other duty constituted police service functioning in a State which is declared by the State Government to be equivalent thereto:

a. **"State Government"** means :

- i. in relation to a State in respect of which a separate cadre of the service exists, the Government of such State ; and
- ii. in relation to a group of States in respect of which a Joint Cadre of the Service is constituted, the Joint Cadre Authority;
- iii. in relation to a group of Union Territories, and in respect of which a joint cadre of the service is constituted, the Central Government.

"Year" means the period commencing on the first day of January and ending on 31st day of December of the same year.

2. All other words and expressions used in these regulations but not defined shall have the meanings respectively assigned to them in the Recruitment Rules.

3. CONSTITUTION OF THE COMMITTEE TO MAKE SELECTION: -

3 (1) There shall be constituted for a State Cadre or Joint Cadre specified in column 2 of the Schedule, a committee consisting of the Chairman of the Commission or where the Chairman is unable to attend, any other member of the Commission representing it and other members specified in the corresponding entry of column 3 of the Schedule:

Provided that :

- i. No member of the Committee other than the Chairman or the member of the Commission shall be a person who is not a member of an All India Service;
- ii. The nominees of the Government of India shall not belong to the cadre of the State for which the meeting of the Committee is to be held; and
- iii. The Central Government may after consultation with the State Government concerned, amend the Schedule.

3 (2) The Chairman or the member of the Commission shall preside at all meetings of the Committee at which he is present.

3 (3) The absence of a member, other than the Chairman or member of the Commission, shall not invalidate the proceedings of the Committee if more than half the members of the Committee had attended the meetings :

1. Deleted.

4. PREPARATION OF A LIST OF SUITABLE OFFICERS :-

5 (1) Each Committee shall ordinarily meet every year and prepare a list of such members of the State Police Service as are held by them to be suitable for promotion to the Service. The number of members of the State Police Service to be included in the list shall be determined by the Central Government in consultation with the State government

4. PREPARATION OF A LIST OF SUITABLE OFFICERS :-

5 (1) Each Committee shall ordinarily meet every year and prepare a list of such members of the State Police Service as are held by them to be suitable for promotion to the Service. The number of members of the State Police Service to be included in the list shall be determined by the Central Government in consultation with the State government concerned, and shall not exceed the number of substantive vacancies as on the first day of January of the year in which the meeting is held, in the posts available for them under rule 9 of the Recruitment Rules. The date and venue of the meeting of the Committee to make the selection shall be determined by the Commission;

provided that no meeting of the Committee shall be held, and no list for the year in question shall be prepared when ;

- a. there are no substantive vacancies as on the first day of January of the year in the posts available for the members of the state Police Service under rule 9 of the recruitment rules; or
- b. the Central Government in consultation with the State Government decides that no recruitment shall be made during the year to the substantive vacancies as on the first day of January of the year in the posts available for the members of the State Police Service under rule 9 of the Recruitment Rules;

Provided further that where no meeting of the Committee could be held during a year for any reason other than that provided for in the first proviso as and when the Committee meets again, the Select List shall be prepared separately for each year during which the Committee could not meet as on the 31st December of each year.

5. EXPLANATION:-

In case of Joint Cadres, a separate select list shall be prepared in respect of each State Police Service.

5(2) The Committee shall consider for inclusion to the said list, the cases of members of the State Police Services in the order of seniority in that service of a number which is equal to three times the number referred in sub-regulation (1).

Provided that such restriction shall not apply in respect of a State where the total number of eligible officers is less than three times the maximum permissible size of the Select List and in such a case the Committee shall consider all the eligible officers;

Provided further that in computing the number for inclusion in the field of consideration, the number of officers referred to in sub-regulation (3) shall be excluded;

Provided also that the Committee shall not consider the case of a member of the State Police Service unless on the first day of January of the year for which the Select List is prepared he is substantive in the State Police Service and has completed not less than eight years of continuous service (whether officiating or substantive) in the post of Deputy Superintendent of Police or in any other post or posts declared equivalent thereto by the State Government.

Provided also that in respect of any released Emergency Commissioned or Short Service Commissioned officers appointed to the State Police Service, eight years of continuous service as required under the preceding proviso shall be counted from the deemed date of their appointment to that service, subject to the condition that such officers shall be eligible for consideration if they have completed not less than four years of actual continuous service on the 1st day of

Provided also that in respect of any released Emergency Commissioned or Short Service Commissioned officers appointed to the State Police Service, eight years of continuous service as required under the preceding proviso shall be counted from the deemed date of their appointment to that service, subject to the condition that such officers shall be eligible for consideration if they have completed not less than four years of actual continuous service, on the 1st day of January of the year for which the Select List is prepared, in the post of Deputy Superintendent of Police or in any other post or posts declared equivalent thereto by the State Government.

EXPLANATION : The powers of the State Government under the third proviso to the sub-regulation shall be exercised in relation to the members of the State Police Service of constituent State, by the Government of that State.

5 (2) (A): Deleted.

5 (3): The Committee shall not consider the cases of the members of the State Police Service who have attained the age of 54 years on the first day of January of the year for which the Select List is prepared :

Provided that a member of the State Police Service whose name appears in the Select List prepared for the earlier year before the date of the meeting of the Committee and who has not been appointed to the service only because he was included provisionally in that Select List shall be considered for inclusion in the fresh list to be prepared by the Committee, even if he has in the meanwhile, attained the age of fifty four years.

Provided further that a member of the State Police Service who has attained the age of fifty four years on the first day of January of the year for which the Select List is prepared shall be considered by the Committee, if he was eligible for consideration on the first day of **"January of the year or any of the years immediately preceding the year in which such meeting is held but could not be considered as no meeting of the Committee was held during such preceding year or years under item (b) of the proviso to sub-regulation(1)".**

5 (3) (A) The Committee shall not consider the case of such member of the State Police Service who had been included in an earlier select list and :

a. had expressed his unwillingness for appointment to the service under regulation 9;

Provided that he shall be considered for inclusion in the Select List, if before the commencement of the year, he applies in writing, to the State Government expressing his unwillingness to be considered for appointment to the service;

a. was not appointed to the service by the Central Government under regulation 9 (a).

5(4) The Selection Committee shall classify the eligible officers as **"Outstanding"**, **"Very Good"**, **"Good"** and **"unfit"** as the case may be on an overall relative assessment of their service records.

5 (5) The List shall be prepared by including the required number of names first from amongst the officers finally classified as **"Outstanding"** then from amongst those similarly classified as **"Very Good"** and thereafter from amongst those similarly classified as **"Good"** and the order of names inter-se within each category shall be in the order of their seniority in the State Police Service.

Provided that the name of an officer so included in the list shall be treated as provisional if the State Government

Provided that the name of an officer so included in the list shall be treated as provisional if the State Government withholds the integrity certificate in respect of such an officer or any proceedings, departmental or criminal are pending against him or anything adverse against him which renders him unsuitable for appointment to the service has come to the notice of the State Government.

Provided further that while preparing yearwise select lists for more than one year pursuant to the 2nd proviso to sub regulation (1), **the officer included provisionally in any of the Select List so prepared shall be considered for inclusion in the Select List of subsequent year in addition to the normal consideration zone and in case he is found fit for inclusion in the suitability list for that year on a provisional basis such inclusion shall be in addition to the normal size of the select list determined by the Central Government for such year.**

EXPLANATION I: The proceedings shall be treated as pending only if a charge-sheet has actually been issued to the officer or filed in a Court as the case may be.

EXPLANATION II: The adverse thing which came to the notice of the State Government rendering him unsuitable for appointment to the service shall be treated as having come to the notice of the State only if the details of the same have been communicated to the Central Government and the Central Government is satisfied that the details furnished by the State Government have a bearing on the suitability of the officer and investigation thereof is essential.

5 (6) Omitted.

5 (7) Deleted

6. CONSULTATION WITH THE COMMISSION : -

The list prepared in accordance with regulation 5 shall then be forwarded to the Commission by the State Government along with:

- i. the records of all members of the State Police Service included in the list;
- ii. the records of all members of the State Police Service who are proposed to be superseded by the recommendations made in the list;
- iii. Deleted;
- iv. The observations of the State Government on the recommendations of the Committee.

6 (A) The State Government shall also forward a copy of the list referred to in regulation to the Central Government and the Central Government shall send their observations on the recommendations of the Committee to the Commission.

7. SELECT LIST .

7 (1) The Commission shall consider the list prepared by the Committee along with:

- a. the documents received from the State Government under regulation 6;
- b. the observations of the Central Government and unless it considers any change necessary, approve the list.

7. SELECT LIST .

7 (1) The Commission shall consider the list prepared by the Committee along with:

- a. the documents received from the State Government under regulation 6;
- b. the observations of the Central Government and unless it considers any change necessary, approve the list.

7 (2) If the Commission considers it necessary to make any changes in the list received from the State Government, the Commission shall inform the State Government and the Central Government of the changes proposed and after taking into account these comments, if any, of the State Government and the Central Government, may approve the list finally with such modifications, if any, as may in its opinion be just and proper.

7 (3) The list as finally approved by the Commission shall form the Select List of the members of the State Police Service.

Provided that if an officer whose name is included in the Select List is, after such inclusion, issued with a charge sheet or a charge sheet is filed against him in a Court of Law, his name in the Select List shall be deemed to be provisional.

7 (4) The Select List shall remain in force till the 31st day of December of the year in which the meeting of the Selection Committee was held with a view to prepare the list under sub-regulation (1) of regulation 5 or up to 60 days from the date of approval of the Select List by the Commission under sub-regulation (1) or as the case may be finally approved under sub-regulation (2) whichever is later:

Provided also that where the select list is prepared for more than one year pursuant to the second proviso to sub-regulation (1) of regulation 5, the Select Lists shall remain in force till the 31st day of December of the year in which the meeting was held to prepare such lists or up to 60 days from the date of approval of the Select Lists by the Commission under this regulation, whichever is later.

Provided that where the State Government has forwarded the proposal to declare a provisionally included officer in the Select List as "**Unconditional**" to the Commission during the period when the Select List was in force, the Commission shall decide the matter within a period of **forty five** days or before the date of meeting of the next Selection Committee, whichever is earlier and if the Commission declares the inclusion of the provisionally included officer in the Select List as unconditional and final, the appointment of the concerned officer shall be considered by the Central Government under regulation 9 and such appointment shall not be invalid merely for the reason that it was made after the Select List ceased to be in force.

Provide further that in the event of any new service or services being formed by enlarging the existing State Police Service or otherwise being approved by the Central Government as the State Police Service under clause (j) of sub-regulation (1) of regulation 2, the Select List in force at the time of such approval shall continue to be in force until a new list prepared under regulation 5 in respect of the members of the new State Police Service, is approved under sub-regulation (1) or, as the case may be, finally approved under sub-regulation (2).

7 (5) Omitted.

7 (5) Omitted.

8. Omitted.

9. APPOINTMENTS TO THE SERVICE FROM THE SELECT LIST:

9 (1) Appointment of a member of the State Police Service, who has expressed his willingness to be appointed to the service shall be made by the Central Government in the order in which the names of the members of the State Police Service appear in the Select List for the time being in force during the period when the Select List remains in force:

Provided that the appointment of members of the State Police Service shall be made in accordance with the agreement arrived at under clause (b) of sub-rule (3) of rule 8 of the Recruitment Rules in the order in which the names of the members of the State Police Service occur in the relevant parts of the Select List for the time being in force.

Provided further that the appointment of an officer, whose name has been included or deemed to be included in the Select List provisionally under proviso to sub-regulation (5) of regulation 5 or under the proviso to sub-regulation (3) of regulation 7 as the case may be shall be made within sixty days after the name is made unconditional by the Commission in terms of the first proviso to sub-regulation (4) of regulation 7.

Provided also that in case a Select List officer has expressed his unwillingness for appointment to the service, he shall have no claim for appointment to the service from that select list unless he informs the Central Government through the State Government before the expiry of the validity of the Select List revoking his earlier expression of unwillingness for appointment to the service.

9 (2) Omitted.

9 (a). POWER OF THE CENTRAL GOVERNMENT NOT TO APPOINT IN CERTAIN CASES:

Notwithstanding anything contained in these Regulations, the Central Government may not appoint any person whose name appears in the Select List if it is of the opinion that it is necessary or expedient so to do in the public interest.

Provided that no such decision shall be taken by the Central Government without consulting the Union Public Service Commission.

10. Saving - Omitted.

Schedule (See Regulation 3)

Sl. No.	Name of the State Cadre/Joint Cadre	Other Members of the Committee

10. Saving - Omitted.

Schedule (See Regulation 3)

Sl. No.	Name of the State Cadre/Joint Cadre	Other Members of the Committee
1.	Arunachal Pradesh, Goa, Mizoram and Union Territories	a. Chief Secretary of the constituent State for which the meeting is held and in respect of Union Territory segment, the senior-most Chief Secretary amongst the Chief Secretaries to the Union Territory administrations; b. The senior-most Chief Secretary of the remaining constituents of the Cadre; c. DGP of the constituent State for which the meeting is held. In respect of Union Territory segment, the Commissioner of Police, Delhi; d. Head of Home Department of the constituent segment for which the meeting is held, not below the rank of Secretary to Government. In case of Union Territory segment, the senior-most officer looking after Home Department among all Union Territories; e. Special/Additional Secretary, Government of India, dealing with AGMUT cadre in Ministry of Home Affairs; and f. Two nominees of Government of India not below the rank of Joint Secretary.
2.	Assam-Meghalaya and Manipur-Tripura Joint Cadres	a. Chief Secretary of the Governments of the constituent States; b. Director Generals of Police of the constituent States; and c. Two nominees of Government of India not below the rank of Joint Secretary.
3.	Other Cadres	a. Chief Secretary of the State Government; b. Secretary, Home Department or Principal Secretary (Home) of the State Government as the case may be; c. The Director General of Police of the State Government; and d. Two nominees of Government of India not below the rank of Joint Secretary.

1.	Arunachal Pradesh, Goa, Mizoram and Union Territories	c. DGP of the constituent State for which the meeting is held. In respect of Union Territory segment, the Commissioner of Police, Delhi; d. Head of Home Department of the constituent segment for which the meeting is held, not below the rank of Secretary to Government. In case of Union Territory segment, the senior-most officer looking after Home Department among all Union Territories; e. Special/Additional Secretary, Government of India, dealing with AGMUT cadre in Ministry of Home Affairs; and f. Two nominees of Government of India not below the rank of Joint Secretary.
2.	Assam-Meghalaya and Manipur-Tripura Joint Cadres	a. Chief Secretary of the Governments of the constituent States; b. Director Generals of Police of the constituent States; and c. Two nominees of Government of India not below the rank of Joint Secretary.
3.	Other Cadres	a. Chief Secretary of the State Government; b. Secretary, Home Department or Principal Secretary (Home) of the State Government as the case may be; c. The Director General of Police of the State Government; and d. Two nominees of Government of India not below the rank of Joint Secretary.

Footnote:- The principal rules were notified vide Notification No.14/2/54-AIS(II) dated 6.6.1955 and amended subsequently vide various GSR/Notification issued by the Govt. of India, DOP&T from time to time.